ROSEMARY NKOMO

Versus

MELI NDLOVU

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 17 FEBRUARY 2026

Urgent Chamber Application – Spoliation Order- virtual

P Ngwenya, for the applicant
P Butshe-Dube, for the respondent

NDUNA J: The parties to the matter were in a relationship. The relationship has soured and they have gone their separate ways. However, during the relationship, they also had a mining agreement. Like the relationship their mining agreement has also soured. We would take it that the respondent has taken leave of the mining venture. It is alleged by the applicant that the respondent has despoiled her of certain property which she prays for an order that it be returned to her. The respondent categorically denies having taken possession of, or dispossessed the applicant of, any property as alleged. The respondent's position is that no act of spoliation occurred.

The law is very clear.

The requirements to be proven by an applicant relying on the *mandament van spolie* are well-known. All that the despoiled person needs to prove is that—

(a) he/she was in peaceful and undisturbed possession of the property; and

(b) he/she was deprived of possession unlawfully, ie forcibly or wrongfully against his consent

The remedy was quite persuasively discussed in *Ngqukumba v Minister of Safety and Security and Others. 2014 (7) BCLR 788 (CC) para 10*. The South African Constitutional court held that:

> "The essence of the *mandament van spolie* is the restoration before all else of unlawfully deprived possession to the possessor. It finds expression in the

> maxim *spoliatus ante omnia restituendus est* (the despoiled person must be restored to possession before all else). The spoliation order is meant to prevent the taking of possession otherwise than in accordance with the law. Its underlying philosophy is that no one should resort to self-help to obtain or regain possession. The main purpose of the *mandament van spolie* is to preserve public order by restraining persons from taking the law into their own hands and by inducing them to follow due process."

What was said above is clearly demonstrated in the cited case by the applicant in *Kama Construction Pvt Ltd vs Cold Comfort farm Co-operation and others 1999 (2) ZLR 19 (s).* In the case if *Kama Construction Pvt Ltd* vs *Cold Comfort Farm Co operation and Another* (supra) it was stated as follows: -

It is trite that in order to obtain a "mandament van spolie" or spoliation order, the applicant must show that:

(a) he was in peaceful and undisturbed possession of the thing; and

(b) he was unlawfully deprived of such possession.

See Joubert Law of South Africa Vol 27 para 78; Botha & Anor v Barrett 1996 (2) ZLR 73 (S) at 79E-F.

The only valid defences that may be raised are that:

(a) the applicant was not in peaceful and undisturbed possession of the thing in question at the time of the dispossession;

(b) the dispossession was not unlawful and therefore did not constitute spoliation;

(c) restoration of possession is impossible;

(d) the respondent acted within the limits of counter-spoliation in regaining possession of the article.

This is being given in the event that the alleged dispossessor is admitting to have despoiled the applicant. Where the despoliation is being disputed it has to be proven that indeed it took place.

The *mandament van spolie* is an extraordinary and robust possessory remedy. Its purpose is to restore possession ante omnia, without regard to the underlying merits of the dispute. Once an applicant proves peaceful and undisturbed possession, and unlawful dispossession, and no recognised defence succeeds, the court is obliged to grant restoration. The remedy is summary and restoration must follow immediately.

Accordingly, the applicant bore the onus to establish that she was in possession of the property and that she was unlawfully despoiled of it. The dispositive issue is dispossession. That element is squarely disputed. The respondent categorically denies taking the property or instigating its removal.

The applicant's case is framed in general terms, reciting the essential elements of spoliation without placing sufficient factual material before the court to demonstrate that those elements were satisfied in her case. It is trite that an applicant must adduce clear and adequate evidence of prior possession and of the act of dispossession.

The applicant relies on an alleged statement by one Musawenkosi, said to confirm that the property was delivered to him in settlement of a debt. No confirmatory affidavit from this individual was filed. In circumstances where the respondent denies taking the property, the absence of a supporting affidavit from the alleged recipient is material. Direct evidence from a witness present at the farm who observed the removal and delivery of the property, or a sworn statement from Musawenkosi himself, could have substantiated the allegation. A bare assertion that such a person would confirm the applicant's version is insufficient.

While a court retains a discretion to admit hearsay evidence, it must assess such evidence in light of the totality of the record. Where the foundational facts to which the hearsay relates are themselves disputed, it is impermissible to prefer untested hearsay over direct evidence denying the allegation. For the court to grant the drastic remedy sought, there must be clear and cogent evidence of unlawful dispossession. The respondent admits no taking and maintains that he did not remove the property. In the absence of admissible and persuasive evidence demonstrating that the respondent acted as alleged, the applicant has failed to discharge the onus. That failure is fatal to the application.

It is accordingly dismissed with costs on ordinary scale.

Dube Legal Practice, applicant's legal practitioners
Butshe and Associates, respondent's legal practitioners